RESOLUTION MEPC.57(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973 RESOLUTION HEPC.57(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1918 RELATING TO
TKE INTERNATIONAL CONVENTION FOR THE PREVENTION OF
POLLUTION rROM SHIPS, 1913
(Designation o f the Antarctic are a as a spec ial area
and lists of liquid substances in Annex II)
THE ~1ARINE ENVIRONMENT PROTECTION COMMITTEE,
RECALLING Article 38(n) of the Convention on the Intp.rnati onal Maritime Organizat ion concerning the function of the Committee conferred upon it by international conventions for th e prevention and control of marine pollution,
NOTING article 16 of the International Convention for the Prevention o f pollution from Ships, 1913 (hereinafter referred to as the "1913 convention") and article VI of the Protocol of 1978 relating to the 1973 Convention (hereinafter referred to as the "1978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confer upon th e appropriate body

and article VI of the Protocol of 1978 relating to the 1973 Convention (hereinafter referred to as the "1978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confer upon th e appropriate body of the Organization the function of considering and adopting amendment s to the 1973 Convention, as modified by the 1978 Protocol (MARPOL 73/78),

NOTING FURTHER reso lution MEPC.55(33) by which the Committee adopted amendments to the International Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (IBC Code),

HAVING CONSIDERED, at its thirt y- third session, amendments to Annex II of HARPOL 73/78 and appendices II and III thereof proposed by the Sub-Committee on Bulk Chemicals at its twen ty-fir st session and c irculat ed in accordance with article 16(2}(a) of the 1973 Conventi on,

1. ADOPTS in accordance
amendments to Annex I I of
texts of t hese amendments
with article 160)(d) of the 1973 Conventio n
MARPOL 73/18 and appendices II and III thereof. the
are set out in the annex t o the present resolution;

2. DETERMINES, in accordance with article l6(2)(f)(iiil of th e

texts of t hese amendments
with article 160)(d) of the 1973 Conventio n
MARPOL 73/18 and appendices II and III thereof. the
are set out in the annex t o the present resolution;
2. DETERMINES, in accordance with article l6(2)(f)(iiil of th e
1973 Convention that the amendments shall be deemed to ha ve been accepted on
the date on which the conditions for the entry into force of th e amendments to
the IRC Code adopted by the Committee by resolution HEPC.55(33) are met,
unless , prior to that date, not less than one third of the Parties or the
Parties , the combined merchant fleets of which constitute not less than fifty
per cent of the gross tonnage of the world's merchsnt fleet, have communicated
to the Organization their objections to the amendments;
3. INVITES the Parties to note that. in accordance with article l6(2)(g)(ii)
of the 1973 Convention, the amendments shall enter into force six months after
their acceptance in accordance with paragraph 2 above;
RESOLUTION MEPC.57(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL
CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973

RESOLUTION MEPC.57(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973 - 2 -
4. REQUESTS the Secretary -General, in conf ormity with artic l e 16(2){e) of the 1973 Convention, to tran smit to all Part ie s to th e Convent ion certified co pies of the present res olutio n and the t ex t o f the ame ndments contained in th e annex;
5 . REQUESTS FURTHER t he Secre tary-General to t r ansm it to the Members of t he Organizat ion which are no t Parties t o th e 1978 Protocol cop ies o f the resolutio n and its annex.
RESOLUTION MEPC.57(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973 - 3 -
ANNEX
TEXT OF AMENDMENTS TO ANNEX II OF KARPOL 73/78
AND APPENDICES II AND III
Regulation 1
The existing text of paragraph (6) is replaced by the following:
'Noxious liquid substance' means any substance referred to in appendix II to this Annex or provisionally assessed under the provisions of

AND APPENDICES II AND III
Regulation 1
The existing text of paragraph (6) is replaced by the following:
'Noxious liquid substance' means any substance referred to in appendix II to this Annex or provisionally assessed under the provisions of regulation 3(4) as falling into category A, B, C or D.
The existing text of the last sentence of paragraph (7) is amended to read 8S ~:
Special areas shall be:
(a) the Baltic Sea area, and
(b) the Black Sea area, snd
(e) the Antarctic area.
A new paragraph (9A) is inserted reading:
(9A) The Antarctic area means the sea area south of latitude 60· S.
Regulation 2
The following new paragraph (7) is added:
(7) (a) Where an amendment to this Annex and to the International Bulk Chemical Code and the Bulk Chemical Code involvea changes to the struc tur e or equipment and fittings due to the upgrading of the requirements for the carriage of certain substances, the Administration may modify or delay for a specified period the application of such an amendment to ships constructed before the date of entry into force of that amendment, if the immediate application of such an amendment is considered

the Administration may modify or delay for a specified period the application of such an amendment to ships constructed before the date of entry into force of that amendment, if the immediate application of such an amendment is considered unreasonable or impracticable. Such relaxation shall be determined with respect to each substance, having regard to the guidelines developed by the Organization.*

* Reference is made to Guideline s for the application of amendments to the list of substances in Annex II of HARPOL 73/78 and the IBC Code and BCH Code with respect to pollution hazards spproved by the Marine Environment Prot ection Committee of the Organization and i ssued under cover of HEPC/Circ.266 .

(b) The Admini strat ion allouing 8 relaxation of the application of an amendment under this paragraph shall submit to the Organization a report giving details of the ship or s hi ps concerned, the cargoes carried, the tra de in which each ship

(b) The Admini strat ion allouing 8 relaxation of the application of an amendment under this paragraph shall submit to the Organization a report giving details of the ship or s hi ps concerned, the cargoes carried, the tra de in which each ship is engaged and the justification for the relaxation, for circulation to the Parties to the Convent i on for their infor matio n and appropriate action, if any.

Regulation 3

The existing t ext of paragraph (3) is repla ced by the fol l owing :

(3) Noxious liquid su bstances carried in bulk which are prese ntly categorized as category A, B, C or 0 and subject to t he provisions of this Annex are referred t o in appendix II t o t his Annex.

Regulation 4

The existing text of paragraph (1) i s re placed by t he foll owin g;

(1) The substances referred t o in appendi x III t o t his Annex hav e been eva lu ate d and found to fall outside ca t egory A, B, C and D, as defi ned in regulation 3(1) of this Annex be cause they are at present cons id ered to present no harm to human health, marine reso urces, amenities or other legitimate uses of the sea, when discharged into the sea from tank cleaning or deballasting operation.

cons id ered to present no harm to human health, marine reso urces, amenities or other legitimate uses of the sea, when discharged into the sea from tank cleaning or deballasting operation.

The existing text of paragraph (2) is replaced by the following:

(2) The di scharge of bi lge or bal last water or other residues or mixtures con taining only substances referred to in appendix 111 to this Annex shall not be subject to any requirement of this Annex.

Regulation 5

The existing te xt of the wording preceding paragraphs (1) an d (7) is amended to read as follows:

Sub ject to t he provisions of paragraph (14) of this r egulatio n and of r egulatio n 6 of t his Annex,

The second sentenc e of the existi ng text of paragraph (1) is amended to read:

If tanks conta i ning such substances or mixtures are to be washed, the resulting re sidues shal l be discharged to a reception fac ility until the concen tration of the substance in the effluent t o such facility is at or below 0.1% by weight snd until the tank is empty, with the exception of phosphorus, yellow or white for which the residual conce ntration shall be at 0.01% by wei ght.

concen tration of the substance in the effluent t o such facility is at or
below 0.1% by weight snd until the tank is empty, with the exception of
phosphorus, yellow or white for which the residual conce ntration shall be
at 0.01% by wei ght.
RESOLUTION MEPC.57(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL
CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973 - 5 -
The existing text of the second sentence of paragraph (7) is amended to read
as follows:
If tanks containing such substances or mixtures are to be washed, the
resulting residues shall be discharged to a reception facility which the
States bordering the special area shall provide in accordance with
regulation 7 of this Annex, until the concentration of the substance in
the effluent to such facility is at or below 0.05% by weight and until
the tank is empty, with the exception of phosphorus, yellow or white for
whi ch the residual concentration shall be 0.005% by weight.
A new para gra ph (14) is added as follows:
(14) In respect of the Antarctic area any discharge into the sea of

the tank is empty, with the exception of phosphorus, yellow or white for whi ch the residual concentration shall be 0.005% by weight.

A new para gra ph (14) is added as follows:

(14) In respect of the Antarctic area any discharge into the sea of noxious liquid substances or mixtures containing such substances shall be prohibited.

Regulation 8

The first and second sentences of the existing text of paragraph ()} is amended to read as follows:

If the tank is to be washed in accordance with subparagraph (2)(a) of this regulation, the effluent from the tank washing operation shall be discharged to a reception facility at least until the concentration of the substance in the discharge, as indicated by analyses of samples of the effluent taken by the surveyor, has fallen to the concentration specified in regulations 5(1) or 5(7), as applicable, of this Annex. When the required concentration has been achieved, remaining tank wash i ngs shall continue to be discharged to the rece p tion facility until the tank is empty.

Regulation 14

In the aecond line the words "designated in Appendix II" are replaced by the word s "referred to in appendix 1111.

wash i ngs shall continue to be discharged to the rece p tion facility
until the tank is empty.
Regulation 14
In the aecond line the words "designated in Appendix II" are replaced by the
word s "referred to in appendix 1111.
Appendix II is replaced by the following:
Appendix II
LIST OF NOXIOUS SUBSTANCES CARRIED IN BULK
Noxious liquid substances carried in bulk snd which are pres~n71y
categorized as category A, B, C or D and subject to the prov1S10ns
of this Annex, are so indicated in the pollution category column of
chapters 17 or 18 of the International Bulk Chemical Code.
RESOLUTION MEPC.57(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL
CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973 - 6 -
Appendix III is replac ed by the followin g:
Appendix Itl
LIST OF OTHER LIQUID SUBSTANCES
Liq uid substances car r ied in bulk which are iden tifi ed as fa l ling outside
the cate gor y A. B, C or D and not subject to the pr ovisions of this Annex
are indicated as "lll H in t h e pollution category colum n of chapters 17 or
18 of the International Bulk Chemical Code.

the cate gor y A. B, C or D and not subject to the pr ovisions of this Annex
are indicated as "III H in t h e pollution category colum n of chapters 17 or
18 of the International Bulk Chemical Code.
RESOLUTION MEPC.57(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL
CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973 RESOLUTION MEPC.57(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL
CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973